



PERSONAL INJURY • INSIGHT

Personal Injury and Wrongful Death Claims, What You're Actually Owed

Jordan Hale • Esq., Personal Injury & Wrongful Death Attorney, Sterling & Cross

Every state defines negligence a little differently, but the underlying question in almost every personal injury and wrongful death case is the same: did someone owe a duty of care, did they breach it, and did that breach cause the harm being claimed.

The four elements that show up in nearly every state

Most negligence claims, personal injury or wrongful death, come down to proving four things: that the defendant owed the injured party a duty of care, that the defendant breached that duty, that the breach caused the harm, and that the harm produced damages the law recognizes as compensable. The exact legal language varies by state, but this basic structure holds almost everywhere.

What counts as compensable damages

Any economic or non-economic losses directly tied to an accident are typically eligible for compensation. The exact amount varies case by case, but damages commonly include medical expenses, lost wages for missed work, property damage costs, compensation for pain and suffering, and in rare cases, punitive damages meant to punish especially reckless conduct.

Wrongful death claims belong to the survivors, not the deceased

A wrongful death claim is generally brought by surviving family members, such as a spouse, children, or other next of kin, and compensates them for losses like lost financial support, funeral and burial costs, and loss of companionship. This runs alongside, and separately from, any survival action the estate itself might bring for what the deceased could have claimed had they lived.

State law controls the deadline, and it is unforgiving

Every state sets its own statute of limitations for personal injury and wrongful death claims, and missing it generally bars the claim entirely, no matter how strong the underlying case is. Because we represent clients nationwide, we build every case around the specific deadlines, negligence standards, and damages rules of the state where the injury or death occurred.

If you or someone in your family has been hurt, or you have lost a loved one because of someone else's negligence, the deadlines involved make it worth having a conversation early rather than waiting.

WRITTEN BY

Jordan Hale

Esq., Personal Injury & Wrongful Death Attorney, Sterling & Cross

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